SPECIAL BENCH **ITEM NO.2**

IN THE NATIONAL COMPANY LAW TRIBUNAL,
ALLAHABAD BENCH,
PRAYAGRAJ

CP (CAA) No.6/ALD/2023 IN
CA (CAA) No.4/ALD/2023
(Second Motion)

Under Section 230-232 of the Companies Act, 2013
In the matter of Scheme of Amalgamation :

ACE LANDCRAFT REALTORS PRIVATE LIMITED
(CIN: U70109UP2021PTC152304)

……. **Petitioner/ Transferor Company No.1**

AND

ACE RESIDENCY PRIVATE LIMITED
(CIN: U70100UP2014PTC064973)

……. **Petitioner/ Transferor Company No.2**

AND

MEGA TOWN PLANNERS PRIVATE LIMITED
(CIN: U70109UP2010PTC169949)

……. **Petitioner/ Transferor Company No.3**

AND

STAR LANDCRAFT PRIVATE LIMITED
(CIN: U70102UP2012PTC053874)

……. **Petitioner/ Transferee Company No.4**

Coram:

HON'BLE MR. PRAVEEN GUPTA, MEMBER (JUDICIAL)

HON'BLE MR. AJAI DAS MEHROTRA, MEMBER (TECHNICAL)

Present :

For the Petitioner Companies : Sh. Krishna Dev Vyas, Adv.

For O.L. Alld/ RD (NR) : Mr. Ajeet Kumar Singh, AOL

-Sd- ***-Sd-***

ORDER

1. This is a joint Second Motion company petition filed by the Petitioner Companies, namely, **Ace Landcraft Realtors Private Limited (**Petitioner/ Transferor Company No.1), **Ace Residency Private Limited (**Petitioner/ Transferor Company No.2), **Mega Town Planners Private Limited (**Petitioner/ Transferor Company No.3), and **Star Landcraft Private Limited** (Petitioner/ Transferee Company No.4) in terms of Rule 16 of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 (for Brevity "Rules).

2. The petitioners companies have prayed for sanctioning of the Scheme of Amalgamation in the petition and notices to be issued to the authorities concerned in relation to the date of hearing of the petition and calling for objections. The First Motion application seeking directions for dispensation of meetings of Shareholders and Creditors of the Petitioner/ Transferor Companies no.1 to 3 and Transferee Company vide Company Application No. CA (CAA) No.4/ALD/2023 moved under Sections 230-232 of the Companies Act, 2013, (for brevity, the 'Act'), necessary directions were issued on 19.05.2023 and in the said order, the meetings of the Shareholders and Creditors of the Petitioner/ Transferor Companies no.1 to 3 and Transferee Company were dispensed with for the reasons mentioned in the aforesaid order.

3. The main objects, date of incorporation, authorized and paid-up share capital, and the rationale of the Scheme have been discussed in detail in the order dated 19.05.2023.

4. Notices are accordingly issued in the present petition to be served by the Petitioner Companies, within two weeks, to the following Authorities namely, (i) Central Government through Regional Director (Northern Region); (ii) Registrar of Companies, Uttar Pradesh, Kanpur; (iii) Official Liquidator, Allahabad; (iv) Jurisdictional Income Tax Authority (Nodal Officer as appointed by CBDT vide its order dated 17.03.2023) by mentioning the PAN of the Company; and (v) the office of RERA Authorities pertaining to place where the registered office of the Petitioner Companies are located, along with a copy of this petition by speed post to be sent.

-Sd- *-Sd-*

5. Sh. Ajeet Kumar Singh, AOL present on behalf of Official Liquidator, Allahabad, accepts notice for the same.

6. In addition to the above public notices, the notice of hearing will also be advertised in "Business Standard" in English and Hindi languages, having wide circulation over the area, where the registered offices of the companies are situated by not less than 10 days before the next date fixed for hearing.

7. The petitioner companies shall at least 7 days before the date of hearing of the petition file an affidavit of notice regarding newspaper publication with newspaper clippings as well as service of notices on the authorities specified above. Objections, if any, to the 'Scheme' contemplated by the authorities to whom notice has been given, may be filed within 30 days, failing which, it will be considered that there is no objection to the approval of the 'Scheme' on the part of the authorities and this Tribunal will proceed in the matter, subject to other conditions being satisfiedas may be applicable under the Companies Act, 2013 and relevant rules framed thereunder. The petitioner companies shall also file an affidavit stating the objections received from public pursuant to publication of notice of hearing in the newspapers.

8. The next date of hearing of the petition shall be on 16th August, 2023 for further consideration of the approval of the scheme as contemplated between the petitioner companies in accordance with and on compliances of the provisions of Companies Act.

9. The registry shall also report before the date fixed for next hearing, as to whether any objections have been received to the proposed 'Scheme'.

-Sd-
(Ajai Das Mehrotra)
Member (Technical)

-Sd-
(Praveen Gupta)
Member (Judicial)

7th June, 2023

Kavya Prakash Srivastava
(Stenographer)